

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO. 2053 OF 2006

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Md. Siddiqur Rahman and others

... Petitioners

-Versus-

Samsunnahar Begum being her legal heirs: A.K.M. Nur Alam @ Alam Raihan and others

... Opposite parties

Mr. Md. Shahidul Islam, Advocate

.... For the petitioners.

Ms. Anita Gazi Rahman with

Mr. Md. Sumon Ali, Advocate

.... For the opposite party Nos.1(a)-

1(f).

Mr. Rafiqul Islam (Hiru), Advocate

.... For the opposite party No.2.

Heard and Judgment on 29.10.2024.

This Rule was issued calling upon the opposite party Nos.1-2 to show cause as to why the impugned judgment and decree dated 23.03.2006 passed by the learned Joint District Judge, 3rd Court, Barishal, in Title Appeal No.189 of 1999 affirming those dated 31.08.1999 passed by the learned Senior Assistant Judge, Barisal Sadar in Title Suit No.1678 of 1984 dismissing the suit should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioners as plaintiffs instituted above suit for declaration of title for 22 decimal land and for further

declaration that the auction sale of above land pursuant to Certificate Case No.1769 of 1984-85 was illegal, void and not binding upon the plaintiff and for recovery of possession by eviction of the huts of the defendants.

It was alleged that above land belonged to Abdus Sobhan father of the plaintiff who transferred the same to the plaintiff by a registered deed of patta dated 19.03.1942. Above Sobhan constructed dwelling huts in above land and rented out the same to Shamuyel Chandra Adhikari and Shimul Chandra Roy by a registered deed of patta dated 16.06.1937. The S.A. Khatian of land was erroneously recorded in the name of above tenants and on the request of the plaintiff above Shamuyel Chandra Adhikari transferred above land by a registered kabala deed on 19.11.1955 to the plaintiff and his mother Rabeya Khatun and delivered possession. Another tenant Kiron Chandra Roy surrendered his share in the disputed land voluntarily and the plaintiff was in peaceful possession in above land. The defendants forcibly dispossessed the plaintiff from above land on 24.12.1992.

Defendant Nos.9 and 16 contested the suit by filing two separate written statements. Defendant No.9 alleged that Shamuyel Chandra Adhikari was the owner and possessor in above land and after his demise his share was inherited by defendant Nos.6-8 who transferred the same to defendant No.9 by a registered kabola deed dated 11.03.1972. Defendant No.9 is in peaceful possession in above dwelling

house. Plaintiff did not have any title and possession in above land nor the defendants dispossessed him from the disputed land.

On the other hand defendant No.16 claims the share of Kiron Chandra Roy and Shimul Chandra Roy alleging that Kiron Chandra Roy transferred his share in the disputed land to the son of Shimul Chandra Roy by a registered on dated 23.03.1947 and Shimul Chandra Roy gave settlement of 6.11 decimal land to Sheikh Farid and the relevant S.A. Khatian was rightly prepared in the name of Sheikh Farid. Above land was sold in auction pursuant to a Certificate Case for recovery of arrear rents and the same was purchased by defendant No.16 and he is in possession in above dwelling house.

At trial plaintiffs examined 4 witnesses and defendants examined 3. Documents produced and proved by the plaintiffs were marked as Exhibit Nos.1-13 and those of the defendants were marked as Exhibit Nos.Ka-Ta series.

On consideration of the facts and circumstance of the case and evidence on record the learned Senior Assistant Judge dismissed the suit.

Being aggrieved by and dissatisfied with above judgment and decree plaintiffs preferred Title Appeal No.189 of 1999 to the District Judge, Barishal which was heard by the learned Joint District Judge, 3rd Court, Barishal who dismissed the appeal and affirmed the judgment and decree of the trial Court.

Being aggrieved by and dissatisfied with above judgment and decree of the Court of appeal below above appellants as petitioners moved to this Court and obtained this Rule.

Mr. Md. Shahidul Islam, learned Advocate for the petitioners submits that admittedly disputed land belonged to Abdus Sobhan and plaintiff is his only son. But the plaintiff claims title in above land on the basis of patta dated 19.03.1942 executed by his father Abdus Sobhan. But at trial above patta deed could not be produced and proved by legal evidence. Similarly the plaintiffs claim title and possession in above land on the basis of registered deed of Kabiliat dated 29.11.1955 executed by Shamuel Chandra Adhikari. But above original document was not produced and proved at trial. A certified copy of above kabuliyat deed was produced at trial but the learned Judges of the Courts below did not accept above document as an effective deed since no patta or rent receipt was produced. Above deficiency in the conduct of the case of the plaintiff in the Courts below was caused due to the inexperience of the appointed Advocate and the plaintiff should not made to suffer for the same. The learned Advocate submits that the ends of justice will be met if the impugned judgment and decree is set aside and the suit is remanded to the trial Court for retrial after giving the parties an opportunity to adduce further evidence.

On the other hand Mr. Md. Sumon Ali, learned Advocate for the opposite party Nos.1(a)-1(f) submits that the instant case is barred by

the principle of resjudicata since the plaintiff himself as plaintiff instituted Title Suit No.100 of 1945 for partition of the disputed property impleading Shamuyel Chandra Adhikari, Shimul Chandra Roy and Kiron Chandra Roy as defendants and in above proceedings the High Court Division finally held that the registered deed of patta dated 16.06.1937 was not a deed of monthly tenancy but a deed of settlement and above mentioned Shamuyel Chandra Adhikari, Shimul Chandra Roy and Kiron Chandra Roy were tenants of the disputed land. The High Court Division further held that the claim of the plaintiff as to voluntary surrender of the disputed land by defendants predecessor was not proved by evidence.

As far as possession of the disputed land is concerned, the possession of Shamuyel Chandra Adhikari, Shimul Chandr Roy and Kiron Chandra Roy in the disputed house is admitted and there is no statement in the plaint as to how and when the plaintiff came into possession in above house. Admittedly the relevant S.A. and R.S khatian of the disputed property stand in the name of the defendants and they are paying rent to the Government. The plaintiff previously filed Title Suit No.107 of 1956 against Shamuyel Chandra Adhikari for recovery of rents admitting his possession in the disputed land. On a detailed analysis of oral and documentary evidence the learned Judges of both the Courts below concurrently held that the defendants are in the possession of the disputed land and the plaintiff was never in the

possession of the same and the defendants did not disposes the plaintiff from above land. Above concurrent findings of the Courts below being based on legal evidence on record this Court in its revisional jurisdiction cannot interfere with above findings.

I have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It is admitted that disputed 22 decimal land is a homestead land which belonged to the father of the plaintiff Abdus Sobhan and the relevant S.A. and R.S. Khatian of above land stand in the names of the defendants. It is also admitted that above mentioned Abdus Sobhan inducted predecessors of the defendants namely Shamuyel Chandra Adhikari, Kiron Chandra Roy and Shimul Chandra Roy into the possession of dwelling houses in the disputed land on execution of registered patta deed dated 16.06.1937 (Exhibit No.Kha).

Plaintiff claims that above patta deed (Exhibit No.Kha) is a deed of monthly tenancy and recipient of above patta deed was a mere monthly tenants. On the other hand defendants claim that although it was mentioned that above patta deed was for a period of 7 years the same was in fact a deed of settlement.

It is admitted that the plaintiff of this suit as plaintiff instituted Title Suit No.100 of 1945 for partition of the disputed property impleading the predecessors of the defendants namely Shamuyel Chandra Adhikari, Kiron Chandra Roy and Shimul Chandra Roy as

defendants admitting their title and possession. In above proceeding the High Court Division held in Second Appeal No.353 of 1949 that the patta deed dated 16.06.1937 (Exhibit No.Kha) was a deed of settlement and pursuant to above settlement predecessors of the defendants namely Shamuyel Chandra Adhikari, Shimul Chandra Roy and Kiron Chandra Roy became tenant under Absus Sobhan. The plaintiff is bound by above findings of the High Court Division as far as the status of above patta deed is concerned. It is also admitted that the plaintiff instituted Title Suit No.107 of 1956 against Shamuyel Chandra Adhikari for realization of rent admitting him as a tenant.

The plaintiff has produced a certificate copy of kabuliyat deed dated 29.11.1955. A Kabuliyat is a unilateral document which is executed by the tenant and the acceptance of the same by the landlord creates a tenancy. A landlord accepts a kabuliyat by executing a patta deed or by granting a rent receipt. The plaintiff did not produce any patta or rent receipt nor provides any explanation for non production of those. As mentioned above S.A. or R.S. Khatian of the disputed property was not prepared on the basis of above kabuliyat deed. As such the concurrent findings of the learned Judges of both the Courts below that above kabuliyat did not create any tenancy appears to be based on evidence on record.

Admittedly Shamuyel Chandra Adhikari and Kiron Chandra Roy were in possession in the dwelling house in the disputed land. The

plaintiff did not mention in the plaint as to when and how he went into the possession of the above property. The learned Advocate for the petitioner stated about oral surrender of above tenancy by Shamuyel Chandra Adhikari. But as mentioned above disputed land was not a cultivable agricultural land but the same was a house and non agricultural land. Moreover, there is no provision for partial surrender of part of a land of a joma. In above view of the materials on record I hold that the learned Judges of the Courts below rightly held that the plaintiff could not prove his claim of oral surrender of the disputed land.

On a detailed analysis of oral evidence of 4 plaintiff witnesses and 3 defendant witnesses and relevant documentary evidence the learned Judges of the Courts below concurrently held that the defendants are in continuous possession in the disputed dwelling house and S.A. Khatian and R.S. Khatian of above land were correctly prepared in their names and the plaintiffs were never in possession of above property and their claim of dispossession by the defendants on 24.12.1992 was unfounded and not proved. Above concurrent findings of the Courts below being based on legal evidence on record in the absence of any allegation of non consideration or misreading of any legal evidence on record this Court in its revisional jurisdiction cannot interfere with above concurrent findings of fact.

In above view of the materials on record I am unable to find any infirmity or illegality in the impugned judgment and decree passed by the learned Joint District Judge nor I find any substance in this application under Section 115 of the Code of Civil Procedure.

In the result, the Rule is hereby discharged. The order of injunction granted at the time of issuance of the Rue is hereby vacated.

However, there is no order as to costs.

Send down the lower Court's record immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER